

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

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MYASIAH BETTIS,

Plaintiff,

-against-

Index No.: 708708/2023

**THE CITY OF NEW YORK, POLICE OFFICER
KEVIN BRANDT (Tax: 966477), POLICE
OFFICER MICHAEL COSTA (Tax: 965012),
POLICE OFFICER CHRISTOPHER WILLIS
(Tax: 971736), POLICE OFFICER VINCENT
DIFRANCISCO (Tax: 971906), POLICE
OFFICER JONATHAN CABRERA,
LIEUTENANT CHRISTOPHER COLON (Tax:
948802), WOMEN IN NEED, INC., NATALIA
RAMIREZ, and SARA WILPAN,**

VERIFIED COMPLAINT

Defendants.

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Plaintiff, MYASIAH BETTIS, by her attorneys, GUERCIO & GUERCIO, LLP, complaining of Defendants, THE CITY OF NEW YORK (hereinafter "City"), POLICE OFFICER KEVIN BRANDT (Tax: 966477) (hereinafter "Brandt"), POLICE OFFICER MICHAEL COSTA (Tax: 965012) (hereinafter "Costa"), POLICE OFFICER CHRISTOPHER WILLIS (Tax: 971736) (hereinafter "Willis"), POLICE OFFICER VINCENT DIFRANCISCO (Tax: 971906) (hereinafter "DiFrancisco"), POLICE OFFICER JONATHAN CABRERA (hereinafter "Cabrera"), LIEUTENANT CHRISTOPHER COLON (Tax: 948802) (hereinafter "Colon") (collectively referred to as the "officers"), WOMEN IN NEED, INC. (hereinafter "WIN"), NATALIA RAMIREZ (hereinafter "Ramirez"), and SARA WILPAN (hereinafter "Wilpan"), alleges as follows:

Parties

1. Plaintiff resides in the State of New York, County of Queens.

2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK (hereinafter the "City"), was and still is a municipal corporation organized and duly existing under and pursuant to the laws of the State of New York.

NYPD Defendants

3. At all times hereinafter mentioned, Defendant, City, maintained a Police Department, the employees of which act as its agents in the area of law enforcement.

4. At all times hereinafter mentioned, Brandt was a police officer with the New York Police Department (hereinafter "NYPD").

5. At all times hereinafter mentioned, Costa was a police officer with the New York Police Department (hereinafter "NYPD").

6. At all times hereinafter mentioned, Willis was a police officer with the New York Police Department (hereinafter "NYPD").

7. At all times hereinafter mentioned, DiFrancisco was a police officer with the New York Police Department (hereinafter "NYPD").

8. At all times hereinafter mentioned, Cabrera was a police officer with the New York Police Department (hereinafter "NYPD").

9. At all times hereinafter mentioned, Colon was a police lieutenant with the New York Police Department (hereinafter "NYPD").

10. At all times hereinafter mentioned, Brandt was acting within the scope of his employment as a police officer with the NYPD.

11. At all times hereinafter mentioned, Brandt was acting under color of state law.

12. At all times hereinafter mentioned, Costa was acting within the scope of his employment as a police officer with the NYPD.

13. At all times hereinafter mentioned, Costa was acting under color of state law.

14. At all times hereinafter mentioned, Willis was acting within the scope of his employment as a police officer with the NYPD.

15. At all times hereinafter mentioned, Willis was acting under color of state law.

16. At all times hereinafter mentioned, DiFrancisco was acting within the scope of his employment as a police officer with the NYPD.

17. At all times hereinafter mentioned, DiFrancisco was acting under color of state law.

18. At all times hereinafter mentioned, Cabrera was acting within the scope of his employment as a police officer with the NYPD.

19. At all times hereinafter mentioned, Cabrera was acting under color of state law.

20. At all times hereinafter mentioned, Colon was acting within the scope of his employment as a police officer with the NYPD.

21. At all times hereinafter mentioned, Colon was acting under color of state law.

22. At all times hereinafter mentioned, Brandt is sued individually and in his official capacity.

23. At all times hereinafter mentioned, Costa is sued individually and in his official capacity.

24. At all times hereinafter mentioned, Willis is sued individually and in his official capacity.

25. At all times hereinafter mentioned, DiFrancisco is sued individually and in his official capacity.

26. At all times hereinafter mentioned, Cabrera is sued individually and in his official capacity.

27. At all times hereinafter mentioned, Colon is sued individually and in his official capacity.

DHS Defendants

28. At all times hereinafter mentioned, Defendant, City, maintained a Department of Homeless Services ("DHS"), which is a municipal City agency, the employees of which act as its agents in the area of homeless services.

29. At all times hereinafter mentioned, DHS was, and still is a municipal City agency duly organized and existing under and by virtue of the laws of the State of New York.

30. At all times hereinafter mentioned, the City, acting by and through DHS, owned a homeless shelter known as the LaGuardia Family Residence located at 102-10 Ditmars Boulevard, Flushing, New York 11369 (hereinafter referred to as the "LaGuardia Family Residence").

31. At all times hereinafter mentioned, Defendant, WOMEN IN NEED, INC. ("WIN") was, and still is a New York corporation, doing business within the City of New York and County of New York and State of New York.

32. Upon information and belief, WIN maintains its offices at One State Street Plaza, 18th Floor, New York 10004.

33. At all times hereinafter mentioned, the City, acting by and through DHS, entered into a contract with WIN for WIN to operate the shelter known as the LaGuardia Family Residence on behalf of the DHS and/or the City.

34. At all times hereinafter mentioned, Wilpan, was an employee of WIN and Program Director of the LaGuardia Family Residence, and agent of DHS and/or the City.

35. At all times hereinafter mentioned, Ramirez, was an employee of WIN and caseworker at the LaGuardia Family Residence, and agent of DHS and Defendant City.

36. At all times hereinafter mentioned, Wilpan was acting within the scope of her employment as a Program Director of the LaGuardia Family Residence and agent of DHS and the City.

37. At all times hereinafter mentioned, Ramirez was acting within the scope of her employment as a caseworker at the LaGuardia Family Residence and agent of DHS and Defendant City.

38. At all times hereinafter mentioned, Wilpan was acting under color of state law.

39. At all times hereinafter mentioned, Ramirez was acting under color of state law.

40. At all times hereinafter mentioned, Wilpan is being sued in her individual and official capacities.

41. At all times hereinafter mentioned, Ramirez is being sued in her individual and official capacities.

CONDITIONS PRECEDENT

42. On or about August 2, 2022, Plaintiff filed a petition to serve a late Notice of Claim and attached as an exhibit a proposed Notice of Claim.

43. By So Ordered Stipulation dated September 16, 2022, and entered by the County Clerk on September 19, 2022, the Court granted Plaintiff's petition to serve a late Notice of Claim, and the attached Notice of Claim to the petition was deemed timely and properly served *nunc pro tunc*.

44. On or about April 11, 2023, Plaintiff timely and properly served a Notice of Claim with respect to her state law claim for malicious prosecution.

45. Plaintiff testified pursuant to General Municipal Law Section 50-h on or about April 19, 2023.

46. More than sixty (60) days have elapsed since the service of the Notice of Claim and adjustment or payment thereof has been neglected or refused.

47. That this action is brought within one (1) year and ninety (90) days from the date that the claims accrued.

48. Plaintiff has complied with all conditions precedent applicable to the instant action.

49. That this action falls within one or more of the exceptions of CPLR 1602, including, but not limited to CPLR 1602(11).

50. Venue is proper based upon where the action accrued.

51. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

FACTUAL BACKGROUND

52. On or about April 28, 2022, at approximately 11:05 a.m., Plaintiff was lawfully present and residing at the LaGuardia Family Residence with her infant son, when she was unlawfully stopped, detained, and arrested by the officers.

53. That in April 2022 Wilpan was the Program Director of the LaGuardia Family Residence and supervisor of caseworker Ramirez.

54. Upon information and belief, on April 28, 2022, Ramirez was instructed by Wilpan to notify residents that DHS was coming to do inspections later that day. Ramirez knocked on Plaintiff's door and Plaintiff told Ramirez to come back later.

55. Upon information and belief, Ramirez violated policies, protocols, and/or procedures of the LaGuardia Family Residence when she failed to announce herself and proceeded to unlock and open Plaintiff's door without consent.

56. Upon information and belief, the employees of WIN, including Wilpan and Ramirez, owed a duty of care to Plaintiff to follow the proper policies and procedures of the LaGuardia Family Residence with respect to, among other things, entering residents' rooms, and Wilpan and Ramirez breached that duty when Ramirez disregarded proper policy and procedure by unlocking and entering Plaintiff's room unannounced and without consent. As a direct and proximate cause of Ramirez's actions, Plaintiff was caused to suffer severe emotional and psychological damages.

57. At the time that Ramirez improperly unlocked and opened Plaintiff's door, Plaintiff was in a state of undress, and therefore, Plaintiff shut the door.

58. Upon information and belief, the door, unbeknownst to Plaintiff, made contact with Ramirez's hand. Wilpan then called 911 and members of the NYPD arrived at the LaGuardia Family Residence. When the officers asked Ramirez whether she wanted medical attention, Ramirez told them that she did not want it. Indeed, Ramirez told the officers that she was not injured or in substantial pain. However, Wilpan insisted that emergency medical personnel be notified.

59. Upon information and belief, when emergency medical personnel arrived, Ramirez, in front of the officers and Wilpan, told emergency personnel that she was not injured or in substantial pain and denied suffering a substantial injury.

60. Upon information and belief, Wilpan, in the presence of the officers, pressured Ramirez to press charges against Plaintiff.

61. Upon information and belief, prior to the underlying incident, Plaintiff complained that her room, which she shared with her infant son, was too cold. Wilpan responded to Plaintiff's

complaint regarding the temperature of the room. Because of this incident, Wilpan began to dislike Plaintiff.

62. Upon information and belief, about a week prior to the underlying incident, Plaintiff made a complaint that her son was physically abused at a daycare. Officers, including Colon and Brandt, responded to the LaGuardia Family Residence to interview Plaintiff regarding this incident. Wilpan was aware of the incident and was present at the LaGuardia Family Residence at the time the officers interviewed Plaintiff.

63. Upon information and belief, when Colon arrived at the LaGuardia Family Residence, Wilpan mentioned the earlier incident to Colon and told Colon, in sum and substance, that the earlier incident provided further basis to arrest Plaintiff and to justify her removal from the LaGuardia Family Residence.

64. Upon information and belief, based upon her prior interactions and the other incidents involving Plaintiff as mentioned above, Wilpan disliked Plaintiff and wanted her removed from the LaGuardia Family Residence.

65. Upon information and belief, the officers interviewed Plaintiff's neighbor who witnessed the incident. The neighbor confirmed Plaintiff's story that Ramirez failed to announce herself prior to unlocking and opening Plaintiff's door in violation of LaGuardia Family Residence policies and procedures.

66. Upon information and belief, despite the officers' knowledge and belief that there was no probable cause to arrest Plaintiff, and after eliciting an account from Plaintiff's neighbor, who stated that Ramirez failed to announce herself prior to unlocking and opening Plaintiff's door in violation of LaGuardia Family Residence policies and procedures, the officers arrested Plaintiff and charged her with assault and harassment.

67. When Plaintiff was arrested and placed in custody, the officers left her infant son in the care of Plaintiff's neighbor. In addition, because of Plaintiff's arrest, Plaintiff was unable to take her son to surgery that was scheduled for later that day.

68. That on April 28, 2022, the City, by and through its agents, servants and/or employees, including Brandt, without probable cause initiated a criminal prosecution of Plaintiff, charging Plaintiff with crimes of which she was innocent and of which the City and Brandt knew Plaintiff to be innocent.

69. That in support of the criminal prosecution, Brandt authored and signed a Criminal Court Complaint, charging Plaintiff with crimes of which she was innocent and of which the City and Brandt knew Plaintiff to be innocent.

70. That in support of the criminal prosecution, Brandt also knowingly made false statements to the District Attorney regarding Plaintiff, including but not limited to that Plaintiff assaulted Ramirez by allegedly slamming a door shut on Ramirez's hand and causing substantial injury and that Plaintiff harassed Ramirez.

71. That in support of the criminal prosecution, Ramirez authored and signed a Supporting Deposition, falsely stating, in sum and substance, that Plaintiff assaulted and harassed Ramirez and that Ramirez suffered a substantial injury as a result of the incident.

72. That the aforementioned statements by Ramirez were false and/or made with actual malice and/or reckless disregard for the truth, and falsely accused Plaintiff of committing the crimes of assault and harassment.

73. That the aforementioned statements constituted material evidence and were the type of evidence likely to influence a judge and/or jury that Plaintiff was guilty of the crimes with which she was charged.

74. That the aforementioned false statements resulted in Plaintiff being deprived of her liberty in, among other things, having to make a court appearance(s) and being restricted in her travel.

75. Upon information and belief, Wilpan notified the New York City Administration for Children's Services of the incident in an attempt to have Plaintiff's child removed from her custody.

76. Following the incident, Plaintiff and her son were removed from the LaGuardia Family Residence.

77. That on or about February 22, 2023, all charges against Plaintiff were dismissed and the criminal proceeding terminated favorably to Plaintiff.

78. That each of the named Defendants herein observed the unconstitutional conduct of his fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct but willfully and intentionally failed to do so.

79. That the actions of Defendants herein were intentional and malicious in nature.

80. That the actions of Defendants were extreme and outrageous, and that Defendants intentionally caused severe emotional distress and mental trauma to Plaintiff.

81. That by virtue of the foregoing, Plaintiff sustained emotional injuries, endured and continues to endure pain and suffering and loss of enjoyment of life, suffered a deprivation of liberty, and was otherwise damaged.

FIRST CAUSE OF ACTION AGAINST THE CITY AND NYPD DEFENDANTS

(False Arrest/False Imprisonment Under NY State Law)

82. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

83. That the aforesaid actions of the officers constitute a false arrest and false imprisonment of Plaintiff, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST THE CITY AND NYPD DEFENDANTS
(Assault and Battery Under NY State Law)

84. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

85. That the aforesaid actions of the officers constitute an assault and battery of Plaintiff, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

86. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

87. That the aforesaid actions of the officers and/or Ramirez and Wilpan, constitute malicious prosecution of Plaintiff, for which the officers and/or Ramirez and Wilpan are liable under New York law for which the City is vicariously liable under the doctrine of respondeat superior, and for which Win is also vicariously liable for the conduct of Ramirez and Wilpan under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST BRANDT, COSTA, WILLIS,
DIFRANCISCO, CABRERA and COLON
(42 U.S.C. § 1983: Fourth and Fourteenth Amendment Violations)

88. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

89. That the aforesaid actions by Brandt, Costa, Willis, DiFrancisco, Cabrera, and Colon in falsely arresting and imprisoning Plaintiff, assaulting and battering Plaintiff, and maliciously prosecuting Plaintiff, constitute unreasonable and illegal seizures of Plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of Plaintiff, a denial of liberty of Plaintiff without due process of law, and a denial of equal protection to Plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle Plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

**FIFTH CAUSE OF ACTION AGAINST BRANDT, COSTA, WILLIS, DIFRANCISCO,
CABRERA and COLON**

(42 U.S.C. § 1983: Failure to Intervene)

90. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

91. That the aforesaid actions by Brandt, Costa, Willis, DiFrancisco, Cabrera and Colon in failing to intervene to prevent and/or stop the aforesaid improper conduct by his fellow officers entitle Plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

**SIXTH CAUSE OF ACTION AGAINST BRANDT, COSTA, WILLIS, DIFRANCISCO,
CABRERA and COLON**

(42 U.S.C. § 1983 Claim Based on Denial of Right to Fair Trial)

92. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

93. That the aforesaid actions by Brandt, Costa, Willis, DiFrancisco, Cabrera and Colon constitute a Plaintiff's right to a fair trial, in violation of Plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle Plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training, Supervision and Retention)

94. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

95. That the aforesaid actions by the officers and the resulting injuries to Plaintiff followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of the officers.

EIGHTH CAUSE OF ACTION AGAINST RAMIREZ AND WILPAN
(42 U.S.C. § 1983: Fourth and Fourteenth Amendment Violations)

96. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

97. That the aforesaid actions by Ramirez and Wilpan unlawfully entering Plaintiff's room and maliciously prosecuting Plaintiff, constitute unreasonable and illegal seizures of Plaintiff in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, and an abridgement of the privileges and immunities of Plaintiff, a denial of liberty of Plaintiff without due process of law, and a denial of equal protection to Plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle Plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

NINETH CAUSE OF ACTION AGAINST RAMIREZ AND WILPAN
(42 U.S.C. § 1983: Failure to Intervene)

98. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

99. That the aforesaid actions by Wilpan and Ramirez in failing to intervene to prevent and/or stop the aforesaid improper conduct by her fellow colleagues entitle Plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

TENTH CAUSE OF ACTION AGAINST THE ALL DEFENDANTS

(Intentional Infliction of Emotional Distress)

100. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

101. That the aforesaid actions by the individual Defendants constitute intentional infliction of emotional distress of Plaintiff, for which the individual Defendants are liable under New York law and for which the City and/or Win are vicariously liable under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Negligence)

102. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

103. That the aforesaid actions by the Defendants constitute negligence, for which the Defendants are liable under New York law and for which the City and/or WIN are vicariously liable under the doctrine of respondeat superior.

TWELFTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Defamation/Defamation per se)

104. Plaintiff repeats and realleges each and every allegation set forth in the preceding paragraphs as if fully set forth at length herein.

105. That the aforesaid actions by the Defendants constitute defamation and/or defamation per se, for which the Defendants are liable under New York law and for which the City and/or WIN are vicariously liable under the doctrine of respondeat superior.

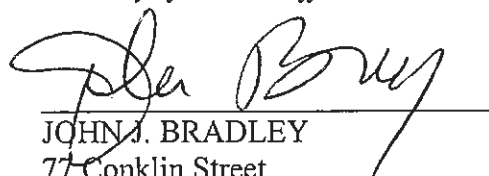
JURY DEMAND

106. Plaintiff demands a trial by jury on all causes of action.

WHEREFORE, Plaintiff demands judgment against Defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and Plaintiff also demands punitive damages against Defendants Brandt, Costa, Willis, DiFrancisco, Cabrera, Colon, Ramirez and Wilpan in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and Plaintiff also demands attorneys' fees against Defendants Brandt, Costa, Willis, DiFrancisco, Cabrera, Colon, Ramirez and Wilpan pursuant to 42 U.S.C. § 1988, and the costs and disbursements of this action.

Dated: Farmingdale, New York
June 28, 2023

Yours, etc.
GUERCIO & GUERCIO, LLP
Attorneys for Plaintiff



JOHN J. BRADLEY
77 Conklin Street
Farmingdale, NY 11735
(516) 694-3000

VERIFICATION

JOHN J. BRADLEY, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

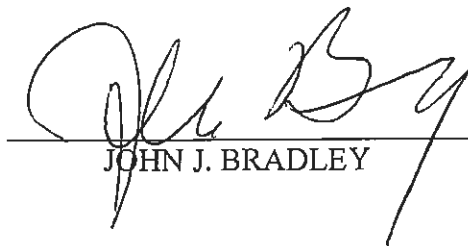
That I am the attorney for the Plaintiff in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the Plaintiff is that Plaintiff does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in Plaintiff's file maintained by your affirmant's office.

Dated: Farmingdale, New York
June 28, 2023



JOHN J. BRADLEY